

**DEPARTMENT EIGHT
JUDGE WENDY GETTY
707-207-7308
TENTATIVE RULINGS SCHEDULED FOR
WEDNESDAY, SEPTEMBER 23, 2026**

The parties may appear via Zoom with the exception of trials, trial management conferences, order for examinations and mandatory settlement conferences. The information for the Zoom meeting is set forth below.

The tentative ruling shall become the ruling of the court unless a party desiring to be heard contacts the judicial assistant of the department hearing the matter by 4:30 p.m. on the court day preceding the hearing, and further advises that such party has notified the other side of its intention to request a hearing. A party requesting a hearing must notify all parties of the request to be heard by 4:30.

**ARKABAYEV v. TANG
Case No. CU26-03769**

Emergency Motion

TENTATIVE RULING:

Plaintiff's "emergency motion" is denied.
Plaintiff has failed to demonstrate proper and timely service of the motion papers on Defendant. Motion papers must be served at least 16 court days prior to the hearing. (Code Civ. Proc. § 1005(b).) Proof of service had to be filed no later than five court days prior to the hearing. (Cal. Rules of Court, rule 3.1300(c).)

Additionally, the motion is not accompanied by a memorandum of points and authorities containing "a statement of facts, a concise statement of the law, evidence and arguments relied on, and a discussion of the statutes, cases, and textbooks cited in support of the position advanced." (Cal. Rules of Court, rule 3.1113(b).) The court construes the absence of the memorandum as an admission that the motion is not meritorious. (Cal. Rules of Court, rule 3.1113(a).)

**LISA PATTERSON v. CITY OF FAIRFIELD, et al.
Case No. CU26-03990**

**CITY OF FAIRFIELD, CITY OF VACAVILLE, and FAIRFIELD HOUSING
AUTHORITY's Demurrer**